

23SMCV03119 23SMCV03119

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 23SMCV03119 Hearing Date: August 6, 2026 Dept: M

CASE NAME: Nelson v. Brazil-Collins, et al.

CASE NO.: 23SMCV03119

MOTION: Motion

to Compel Supplemental Discovery Responses

HEARING DATE: 8/6/26

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown

in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2033.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Defendants Angela

Brazil-Collins and Patrick Collins move to compel Plaintiff Regina Nelson to serve verified answers, without objection, to (a) Supplemental Demand for Production, Set One; and (b) Supplemental Interrogatories, Set One. Defendant seeks monetary sanctions of \$430 per motion against Plaintiff.

Defendants show that they

served Plaintiff with the subject supplemental discovery on March 6, 2026. (Garcia Decl., Ex. A.) Defense counsel attempted to meet and confer with Plaintiff, but to no avail. (Id., ¶¶ 3-4.) Defendants have not received Plaintiff's verified responses. (Id., ¶ 5.)

Accordingly, the motion is

GRANTED. Plaintiff must respond, without objection, to the subject discovery within 20 days. Sanctions are imposed in the noticed amount of \$860.00 against Plaintiff. Sanctions must be paid to Defendants' counsel of record within 30 days.